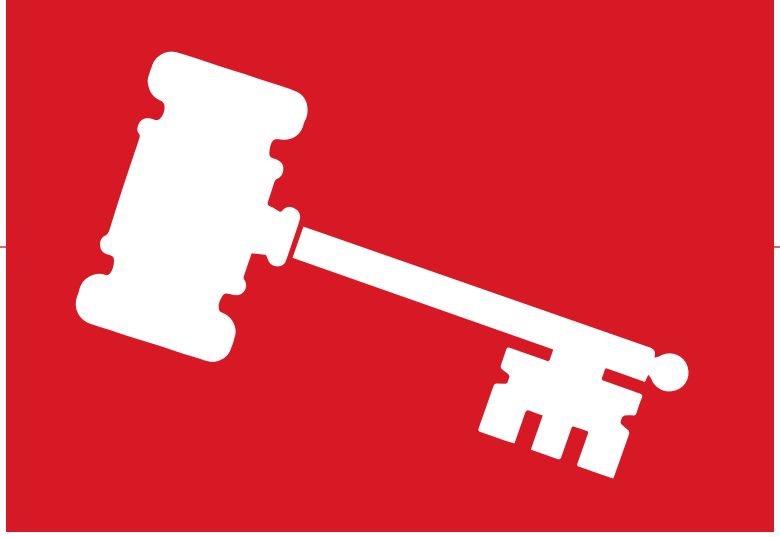


as sons in the property
- The Act makes a distinction between ancestral property and self-acquired property. Any undivided property that passes to descendants up to four generations of male lineage is called ancestral property. A grandchild has a birthright to ancestral property but has none over self-acquired property of grandparent
- Child born of a voidable marriage, out of wedlock is a legitimate heir
- The Act doesn't apply to those married under Special Marriage Act, 1954 unless both spouses are Hindus, Jains, Sikhs or Buddhists. Succession in these cases is governed by the Indian Succession Act, 1925

FOR MUSLIMS

- According to Muslim Personal Law (Shariat) Application Act, 1937, a Muslim man may bequeath only one-third of his assets by a will, provided the heirs' consent is obtained
- The spouse and other heirs inherit the remaining estate
- An heir cannot inherit the property if he does not pay the debts inherited from the deceased
- The share of a female heir is half that of the male heirs
- A Muslim woman is entitled to an eighth of the husband's property's share if there are kids, else a quarter
- Muslim laws don't recognise children born out of wedlock
- The Act doesn't apply to those married under Special Marriage Act, 1954. Succession in such cases follows Indian Succession Act, 1925

FOR CHRISTIANS

- Succession is governed by Indian Succession Act, 1925. It allows a will bequeathing all or part of properties
- Share of the children equally distributed among sons and daughters
- Christian law does not recognise children born out of wedlock
- A Christian wife is entitled to a pre-determined share. If the deceased has left children, his widow receives one-third of the estate, with the rest going to the children. If the heirs are relatives other than the children, she gets half of the estate, and the remainder goes to the other relatives of the deceased. If there are no children or other relatives, she receives the entire property

FOR PARSIS

- Succession is governed by the Indian Succession Act, 1925
- If a Parsi man dies leaving a wife and children, the share of each son and of the wife shall be double the share of each daughter. If he dies leaving children but no wife, the share of each son shall be double the share of each daughter
- However, if a Parsi woman dies leaving her husband and children, each child and husband will receive equal share
- If a Parsi man dies leaving one or both parents in addition to children and wife, the father will receive a share equal to half the share of a son and the mother will receive a share equal to half the share of a daughter
- If a Parsi woman dies leaving behind one or both parents, along with children and husband, the parent or both the parents shall receive a share equal to half the share of each child

RELIGION	GOVERNING LAW	PROVISION FOR WILL	DISTINCTION BETWEEN ANCESTRAL PROPERTY AND SELF-ACQUIRED PROPERTY	RIGHT TO EQUAL SHARE IN PROPERTY FOR DAUGHTERS
Hindus, Jains, Buddhists, Sikhs	The Hindu Succession Act, 1956*	Yes	YES	YES
Muslims	Muslim Personal Law (Shariat) Application Act, 1937	Only one-third of the person's property	NO	NO
Christians	The Indian Succession Act, 1925	Yes	NO	YES
Parsis	The Indian Succession Act, 1925	Yes	NO	NO

*The Hindu Succession Act, 1956, doesn't apply to any Scheduled Tribes covered under Article 366 of the Constitution, unless otherwise directed by the Centre by a notification in the official gazette